

Expenses of
rural district
councils.

61 & 62 Vict.
c. 37.

4. The money required by a rural district council for the purposes of the principal Act shall be raised equally over the whole district, and shall be supplied by the council of the county comprising the district in the manner provided by the Local Government (Ireland) Act, 1898, as part of the expenses of the district council.

Use of schools
as libraries.

5. Any library authority may enter into agreements with the managers of any school for the use of such school as a library and for the care of the books and the management of the library, upon such terms as may be mutually agreed by and between such library authority and school managers.

County
councils may
make grants.

6. Any county council may, out of the funds at its disposal for technical education, make a grant-in-aid to any library authority for the purchase of books by such library authority, or towards the maintenance of any public library belonging to or established by any such library authority.

Offences.
61 & 62 Vict.
c. 53.

7. The Libraries Offences Act, 1898, shall apply to any library established under the principal Act.

Byelaws and
repeal.
1 Edw. 7. c. 19.

8.—(1) The provisions of the Public Libraries Act, 1901, enabling a library authority to make byelaws, and otherwise relating to such byelaws, shall extend to Ireland with the substitution of the Public Libraries (Ireland) Acts, 1855 to 1902, for the principal Act, and of sections two hundred and nineteen to two hundred and twenty-three of the Public Health (Ireland) Act, 1878, for sections one hundred and eighty-two to one hundred and eighty-six of the Public Health Act, 1875, and of the expression "sanitary authority" for "local authority."

41 & 42 Vict.
c. 52.

38 & 39 Vict.
c. 55.

(2) Section twelve of the Public Libraries Act, 1901, is hereby repealed.

CHAPTER 21.

An Act to prohibit compulsory Membership of Unregistered Shop Clubs or Thrift Funds, and to regulate such as are duly registered. [8th August 1902.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Membership
of friendly
society, &c.
not to be
condition of
employment.

1. It shall be an offence under this Act if an employer shall make it a condition of employment—

- (a) That any workman shall discontinue his membership of any friendly society; or
- (b) That any workman shall not become a member of any friendly society other than the shop club or thrift fund.

Employer
not to require
workman to
join shop
club, &c.

2. It shall be an offence under this Act if an employer shall make it a condition of employment that any workman shall join a shop club or thrift fund, unless the shop club or thrift fund is

registered under the Friendly Societies Act, 1896, subject to the 59 & 60 Vict. provisions of this Act, and certified under this Act by the Registrar c. 25. of Friendly Societies.

No shop club or thrift fund shall be so certified unless the Registrar of Friendly Societies is satisfied—

- (a) That the shop club or thrift fund is one that affords to the workman benefits of a substantial kind, in the form of contributions or benefits at the cost of the employer in addition to those provided by the contributions of the workman ;
- (b) That the shop club or thrift fund is of a permanent character and is not a society that annually or periodically divides its funds, and that no member of such shop club or thrift fund shall, except in accordance with the provisions of section six of this Act, be required to cease his membership in such shop club or thrift fund upon leaving the firm with which such club or fund is connected.

Before so certifying any shop club or thrift fund, the Registrar shall take steps to ascertain the views of the workmen, and shall be satisfied that at least seventy-five per cent. of the workmen desire the establishment of such shop club or thrift fund, and further shall consider any objections that they may make to the certification.

3. The regulations contained in the schedule of this Act shall Regulations. apply to any shop club or thrift fund certified under this Act.

4. Every person who commits an offence within the meaning Penalty. of this Act shall be liable, on summary conviction, to a fine not exceeding five pounds, and, in the case of a second or subsequent conviction within one year of a previous conviction, to a fine not exceeding twenty pounds :

Provided that, where an offence is committed in respect of several persons at the same time, the offender shall not be convicted of more than one offence.

5. Nothing in this Act shall prohibit compulsory membership Exemption of railways. of any superannuation fund, insurance or other society already existing for the benefit of the persons employed by any railway company, to the funds of which such company contributes.

6. In any case where a workman, by the conditions of his employment, is a member of a shop club, he shall, upon his dismissal from, or upon leaving, his employment, unless contrary to the rules of the club, have the option of remaining a member or of having returned to him the amount of his share of the funds of the club, to be ascertained by actuarial calculation : Compensation to workman ceasing to be member of shop club. Provided that every such member who shall exercise the option to remain a member of the club shall not, so long as he remains out of such employment, be entitled to take any part in the management of the club, or to vote in respect thereof.

7. In this Act—

The term “friendly society” means a friendly society registered under the Friendly Societies Act, 1896, and includes a registered branch, and in application to Scotland and

Definitions.

Ireland the word "registrar" means the registrar as defined in that Act:

The expression "shop club" or "thrift fund" means every club and society for providing benefits to workmen in connection with a workshop, factory, dock, shop or warehouse.

Date of Act. 8. This Act shall come into operation on the first day of January one thousand nine hundred and three.

Short title. 9. This Act may be cited as the Shop Clubs Act, 1902.

• SCHEDULE.

REGULATIONS AS TO CERTIFICATION UNDER THIS ACT.

Section 3.

The rules of a shop club or thrift fund (herein-after termed "the society") shall provide for the following matters:—

- i. The name and place of office of the society.
- ii. The whole of the objects for which the society is to be established, the purposes for which the funds thereof shall be applicable, the terms of admission of members, the conditions under which any member may become entitled to any benefit assured thereby, and the fines and forfeitures to be imposed on any member and the consequences of non-payment of any subscription or fine.
- iii. The mode of holding meetings and right of voting, and the manner of making, altering and rescinding rules.
- iv. The appointment and removal of a committee of management (by whatever name), of a treasurer and other officers, and of trustees.
- v. The investment of the funds, the keeping of the accounts, and the audit of the same once a year at least.
- vi. Annual returns to the registrar of the receipts, funds, effects and expenditure and numbers of members of the society.
- vii. The inspection of the books of the society by every person having an interest in the funds of the society.
- viii. The manner in which disputes shall be settled.
- ix. The keeping separate accounts of all moneys received or paid on account of every particular fund or benefit assured for which a separate table of contributions payable shall have been adopted, and the keeping separate account of the expenses of management and of all contributions on account thereof.
- x. A valuation once at least in every five years of the assets and liabilities of the society, including the estimated risks and contributions.
- xi. The voluntary dissolution of the society by consent of not less than five-sixths in value of the persons contributing to the funds of the society, and of every person for the time being entitled to any benefit from the funds of the society, unless his claim be first satisfied or adequately provided for.
- xii. The right of one-fifth of the total number of members, or of one hundred members in the case of a society of one thousand members and not exceeding ten thousand, or of five hundred members in the case of a society of more than ten thousand members, to apply to the chief registrar, or, in any case of societies registered and doing business exclusively in Scotland or Ireland, to the assistant registrar for Scotland or Ireland, for an investigation of the affairs of the society or for winding up the same.